

HOUSE BILL 1971

By Farmer

AN ACT to amend Tennessee Code Annotated, Title 1,
Chapter 3 and Title 49, relative to causes of
action.

WHEREAS, the 110th General Assembly enacted Public Chapter 621; and

WHEREAS, the General Assembly never intended that enactment to waive Tennessee's
sovereign immunity; and

WHEREAS, the General Assembly maintains its intent to retain Tennessee's sovereign
immunity; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 1-3-121, is amended by deleting the
section in its entirety.

SECTION 2. Tennessee Code Annotated, Section 49-7-191(f), is amended by deleting
the subsection and substituting the following:

(f) An individual who believes that a violation of this section has occurred may
seek relief pursuant to § 4-21-311.

SECTION 3. Tennessee Code Annotated, Title 1, Chapter 3, is amended by adding the
following as a new section:

(a) Notwithstanding another law to the contrary, a cause of action exists under
this section for any affected person who seeks declaratory or injunctive relief in any
action brought regarding the legality or constitutionality of a governmental action of only
a political subdivision of this state. A cause of action does not exist under this section:

- (1) To seek damages; or
- (2) To challenge the validity or constitutionality of any state statute.

(b) This section does not authorize a cause of action against, or waive the sovereign immunity and privileges of, the state, state entities, or state officials.

(c) As used in this section, "political subdivision" means a local governmental entity, including a city, town, metropolitan government, county, utility district, local school district, public building authority, and development district created and existing pursuant to the laws of this state, or any instrumentality of government created by any one (1) or more of the named local governmental entities.

SECTION 4. If any provision of this act or the application of any provision of this act to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.